CONTRACT FOR SERVICES

This Contract for Services is for the provision of eLearning support services (the "Agreement") dated as of this day is between: -

Service Consulting Solutions (Cork) Limited of Building 6500E, Cork Airport Business Park, Kinsale Road, Cork, (hereinafter referred to as the "Contractor"),

and

DemoCo (hereinafter referred to as "DemoCo" or the "Client") each a "Party" and together the "Parties".

Terms and Conditions

1) **Definitions**

"Agreement" means this services contract, including all Schedules hereto;

"Commencement Date" means 13th of April 2026;

"Contract" means a contract which falls within the scope of this Agreement for which the

Contractor has submitted and the Client has accepted a Tender or Supplementary Tender.

"Contract Period" means the period in years set out in Clause 3;

"Data Protection Laws" means all applicable privacy and data protection laws including the General Data Protection Regulation (EU 2016/679) ("GDPR") the Data Protection Acts 1988 - 2018 and the EU ePrivacy Directive 2002/58/EC as amended by Directive 2009/136/EC, and any implementing, derivative or related legislation, rule, regulation and binding regulatory guidance, in each case as any of them are amended, revised or replaced from time to time;

"Services" means the provision of services as detailed under Schedule 1 of this Agreement;

"Terms and Conditions" or "Terms" means those Terms and Conditions set out in Schedule 4 of this Agreement.

2) **Scope of work**

The Contractor shall perform the work set out in Schedule 1 attached on the terms and conditions set out hereunder. The contractor will report to the Chief Training Officer or such other person as may be nominated by DemoCo from time to time.

3) **Duration of the contract**

The duration of the work plan and this agreement is for a period of twenty months, commencing on the 13th of April 2026 and ending on the 31st of December 2027 (Contract Period).

4) **Contractor's Obligations**

4.1 *Conflict of Interest*: The Contractor is required to inform the Client of any conflict of interest of which it becomes aware during the period of the Agreement. Any registrable interest involving the Contractor (and its agent if applicable) and the Client, the Ceann Comhairle (Speaker), or any member of the Government, or any member of the Oireachtas, or employees of the Client or their relatives must be communicated to the Client immediately. The Contractor shall comply with the Client's directions in respect thereof, to the satisfaction of the Client. In the event of such disclosure, the Client shall have the right (in addition to any other rights which it has at law) to terminate this Agreement immediately and without liability to pay compensation or damages. The terms 'registrable interest' and 'relative' shall be interpreted as per Section 2 and the Second Schedule of the Ethics in Public Office Act, 1995. Failure to disclose a conflict of interest may disqualify the Contractor from tendering for a Contract or invalidate an award of contract, depending on when the conflict becomes apparent.

4.2 *Insurances*: The Contractor is required to maintain, as a minimum, the forms of insurance set out in Schedule 4. This may be subject to revision during the lifetime of the Agreement, in which case the Client shall notify the Contractor of the revised requirements and allow thirty (30) days for the provision of evidence that the required policies are in place. The levels of insurance required in respect of individual Contracts may vary, in which case

the Client shall notify the Contractor of the required levels of insurances in the relevant Request for Supplementary Tender or at the earliest opportunity.

4.3 *Tax Clearance Certificate*: The Contractor shall maintain in its possession a valid Tax Clearance Certificate issued by the Irish Revenue Commissioners and confirmation from their external auditors and tax advisors that all tax affairs are up to date throughout the Contract Period and for the duration of any Contract.

4.4 *Changes to Declaration*: The Contractor shall retain a copy of the signed declaration provided in Schedule 4 of this Contract, which complies with the requirements set forth in Article 57 of Directive 2014/24/EU. If at any point during the Contract Period or during the lifetime of a Contract the Contractor becomes aware of circumstances that might affect the validity of any of its statements in its declaration it shall notify the Client in writing of such circumstances at the earliest possible opportunity.

4.5 *Corrupt Gifts and Inducements*: The Contractor shall not give, provide or offer to any staff or agent of the Client a loan, fee, reward, gift, advantage, benefit or other payment during the Contract Period as an inducement or reward for doing or forbearing to do, or for having done or forborne to do, any action in relation to the obtaining or execution of this Agreement or any contract. The Client shall be entitled at all times to request a certificate from any person in their employment or in the employment of the Contractor that no such gift has been given. In the event of any such gift having been given, the Client shall be entitled to terminate this Agreement and any Contract forthwith and to recover from the Contractor all losses resulting from such termination together with an account or value of such gift.

5) Independent Contractor

The Contractor shall perform their duties hereunder as an independent Contractor and not as an employee. Neither the contractor nor any agent or employee of the Contractor shall be, or shall be deemed to be, an agent or employee of the client. No commitment shall be entered into by the

Contractor, or representations made to any third party by the Contractor, without the express prior written approval of DemoCo. Nothing herein shall be deemed or construed to create a joint venture, partnership and/or fiduciary or other relationship between the parties for any purpose. The officers, employees or agents of the Contractor are not and shall not hold themselves out to be (and shall not be held out by the Contractor as being) servants or agents of the Client for any purposes whatsoever.

6) **Efficiency and evaluation**

The Contractor will perform the services in an efficient and cost-effective manner and within the timeframes and conditions as set out in Schedule 1 and as per the Terms and Conditions specified under Schedule 4. The Contractor will permit DemoCo and/or any of its agents to monitor, as DemoCo sees fit, all activities conducted by the contractor pursuant to the terms of this contract.

7) **Audits**

The Contractor authorises the Client or any of its agents to perform audits and/or inspections of its records at any reasonable time during the term of this contract and for a period of three years following the date of final payment under this contract to assure compliance with its terms and/or to evaluate the Contractor’s performance.

8) **Limitations**

Save in respect of any limitations expressly included in Schedule 1, no limitations on the rights of DemoCo under general public law shall be imposed and no rights of DemoCo shall be excluded. Both this provision and the remainder of these terms (including the Schedules hereto the provision of which Schedules shall take precedence over the general terms of this contract) shall prevail in the event of any conflict save where there is express provision in the Schedule that the terms hereof shall be superseded in whole or in part including by reference to any appended document.

9) **Compensation and Payment**

The fee payable by the Client in respect of the services shall be that stipulated at Schedule 2 and shall be payable by the Client on the dates or within the timeframes or conditions stipulated in Schedule 2, and DemoCo shall only pay those fees or such varied fees as may be agreed in writing between DemoCo and the Contractor from time to time. DemoCo shall be regarded as a "consumer" within the meaning of all relevant consumer protection legislation. Additional fees or expenses shall be payable by DemoCo but only insofar as such fees and expenses have been agreed in advance by DemoCo in the format requested by DemoCo.

10) **Indemnities**

The Contractor shall indemnify DemoCo, the members thereof, its officers and agents and respective governments in Northern Ireland and the Republic of Ireland against any loss or expense which may be incurred as a result of any civil claim or proceedings brought against DemoCo or any of the aforesaid persons in respect of any function performed by the Contractor or any material (whether tangible or not) procured pursuant to the provisions hereof. The Contractor shall also agree that during the term of this agreement they will maintain necessary insurance policies.

11) **Assignment / Delegation / Subcontracting**

The duties and obligations of the Contractor cannot be assigned, delegated or subcontracted except with the express prior written consent of DemoCo.

12) **Announcements and Communications**

Any and all public announcements and advertising in relation to the project may only be published subject to the prior written consent of DemoCo. The Contractor does not have any right under this contract to use any of the names, symbols, trademarks or service marks presently existing or later established, in any public announcements, advertising or promotional material without the prior written consent of DemoCo.

13)**Freedom of information**

The Contractor acknowledges that the Freedom of Information Acts 1997 and 2003 apply to DemoCo. In the event that any information or materials held or prepared by the Contractor are the subject of a request for information under the Acts, the Contractor will ensure that any such materials are supplied promptly to DemoCo for consideration and, if appropriate, disclosure. DemoCo shall have no liability for any disclosure made by it in accordance with the requirements of the Acts and this clause.

14)**Data protection**

Under the Irish Data Protection Acts, DemoCo, as the Data Controller is required to put in place an agreement between DemoCo and the successful tenderer governing the processing of the data (see Schedule 3). The Contractor also undertakes to provide DemoCo with a copy of their data protection policy.

15)**Force Majeure**

means, in relation to either party, a circumstance beyond the control of that party (the "Claiming Party"). The Claiming Party will not be in breach of this agreement or otherwise liable for any delay in performance or any non-performance of any obligations of this agreement if and to the extent that the delay or non-performance is owing to Force Majeure and if :-

a) The effect of the force majeure could not have been avoided by the Claiming Party by taking precautions which, having regard to all matters known to it before the occurrence of the Force Majeure and all relevant factors, it ought reasonably to have taken but did not take, and
b) The Claiming Party has used reasonable endeavours to mitigate the effect of the Force Majeure and to carry out its obligations under this agreement in any other way that is reasonably practicable.

The Claiming Party will promptly notify the non-Claiming Party of the nature and the circumstances giving rise to Force Majeure.

If the Force Majeure in question prevails for a continuous period in excess of one month after the date on which the Force Majeure begins, the non-Claiming Party is then entitled to give notice to the Claiming Party to terminate the agreement.

The notice to terminate must specify the termination date which must not be less than ten clear days after the date on which the notice to terminate is given. Neither party shall have any liability to the other in respect of termination of the contract due to Force Majeure but rights and liabilities which have accrued prior to termination shall subsist.

16) **Dispute resolution**

16.1 In the event of any dispute arising out of or relating to this Agreement (the "Dispute"), the Parties shall first seek settlement of the Dispute as set out below.

16.2 The Dispute shall be referred as soon as practicable to Disputes Officer within the Contractor and to Corporate Operations Manager within the Client respectively.

16.3 If the Dispute has not been resolved within fifteen (15) Business Days (or such longer period as may be agreed in writing by the Parties) of being referred to the nominated representatives, then either Party may refer the Dispute to an independent mediator, the identity of whom shall be agreed in advance by the Parties.

16.4 If the Parties are unable to agree on a mediator or if the mediator agreed upon is unable or unwilling to act, either Party may within twenty-one (21) days from the date of the proposal to appoint a Mediator or within twenty-one (21) days of notice to either Party that the mediator is unable to act, apply to Mediators' Institute of Ireland to appoint a mediator.

16.5 Any submissions made to and discussions involving the mediator, of whatever nature, shall be treated in strict confidence and without prejudice to the rights and/or liabilities of the Parties in any legal proceedings and, for the avoidance of doubt, are agreed to be without prejudice and legally privileged. The Parties shall make written submissions to the mediator within ten (10) Business Days of his/her appointment.

16.6 The Parties shall share equally the cost of the mediator. The costs of all experts and any other third parties who, at the request of any Party, shall

have been instructed in the mediation, shall be for the sole account of, and shall be discharged by that Party.

16.7 For the avoidance of doubt, the obligations of the Parties under this Agreement shall not cease, or be suspended or delayed by the reference of a dispute to mediation. The Contractor shall comply fully with the requirements of the Agreement at all times.

16.8 In the event that the dispute or difference is not resolved within fifteen working days of the appointment of the mediator, the dispute or difference shall be referred to an arbitrator to be agreed between the parties and, in default of agreement within ten working days of the receipt by one Party of a written notice to concur in the appointment of an arbitrator, by the Chairman of the Chartered Institute of Arbitrators Irish Branch, such arbitration to be governed by the Arbitration Act 2010 as amended or replaced and shall be conducted in accordance with the IEI Arbitration Procedure 2000. The arbitrator shall have no connection with the mediator or mediation proceedings unless both parties have otherwise consented in writing.

17) **Termination**

Without prejudice to any other rights or remedies to which it may be entitled, the Client shall be entitled to terminate the appointment of the Contractor forthwith and without liability by giving notice at any time if:

17.1 the Contractor commits a material breach of any term or condition of this Agreement, or a Contract concluded under the Agreement;

17.2 The Contractor fails to perform any obligation or responsibility under this Agreement or a Contract concluded under the Agreement, either at all or to a standard that the Client acting reasonably considers satisfactory and, if such breach is capable of being remedied, fails to remedy the breach within fourteen (14) days of notice given by the Client requiring the Contractor to do so;

17.3 The Contractor’s performance of an obligation under a Contract is not in accordance with the terms of this Agreement or the relevant Contract, or fails to meet any standard prescribed by law;

17.4 Any person employed by the Contractor or acting on its behalf offers or appears to offer a corrupt gift or inducement in the sense set out in Clause 8.5 above, whether with or without the knowledge of the Contractor;

17.5 The Contractor convenes a meeting for the purposes of, or proposes to enter into any arrangement or composition for the benefit of its creditors;

17.6 The Contractor ceases or threatens to cease to carry on business or takes or suffers any analogous action under any applicable law;

17.7 The Contractor is unable to pay its debts within the meaning of Section 214 of the Companies Act, 1963 (as amended by Section 123 of the Companies Act, 1990) or any analogous provision of law;

17.8 An order is made or an effective resolution is passed for the winding up of the Contractor other than for the purpose of a restructuring the terms of which have been agreed by the Client;

17.9 A petition is presented or an order is made or a resolution passed or any analogous proceedings or action is taken for the appointment of an examiner, administrator, receiver, trustee or any similar officer over the Contractor's company;

17.10 An encumbrancer takes possession, or a receiver is appointed, of any of the property or assets of the Contractor;

17.11 The Client reasonably believes that any of the events mentioned above is about to occur in relation to the Contractor and notifies the Contractor;

17.12 The Contractor has committed any fraudulent act or any criminal activity or is guilty of gross negligence in the performance of this agreement or the relevant Contract;

17.13 Any representation made by the Contractor in connection with this Agreement or a Contract shall in the opinion of the Client prove to be untrue or incorrect in a material respect as of the date when made;

17.14 Any event analogous to those contemplated in Clauses 9.1.5 through 9.1.12 occurs to the Contractor within the laws of any other jurisdiction.

17.15 The Contractor shall have no claim for damages or otherwise against the Client as a result of the termination of its appointment in accordance with this Clause.

17.16

18)**General**

Amendment: No modification of these terms and conditions shall be valid unless in writing and signed on behalf of DemoCo and the Contractor.

18.1 Entire Agreement: These terms and conditions constitute the entire understanding of the Parties and render ineffective all prior understanding of the Parties and render ineffective all prior understanding and agreements between the Parties. The Contractor will furnish to DemoCo all required Tax Clearance Certificates and Insurance Certificate as required.

18.2 Waiver: Failure by either Party to exercise their rights under these conditions shall not operate as a waiver or in any way preclude or prevent the exercise of further rights. A waiver of any breach of the terms of these conditions shall not be deemed to be a waiver of any other breach or default and shall in no way affect the other terms of the Contract.

18.3 Severability: Should any part of this Agreement be or subsequently be found to be invalid, unlawful or unenforceable, then such parts shall be severed from the Agreement and the remainder of the Agreement shall continue in full force and effect.

18.4 Duplicates: This Agreement shall be executed in duplicate and each copy of the Agreement shall be signed by all the Parties hereto. Each of the Parties confirms that this Agreement is executed by their duly authorised officers.

18.5 Notices: The address, email and telephone numbers of the parties for the purpose of the giving of notices under this Agreement are as follows:

For the Client:

For the Contractor: Damian O'Neill
Service Consulting Solutions Ltd,
Building 6500E,
Cork Airport Business Park,
Kinsale Road, Cork

Any notice or other communication whether required or permitted to be given by one Party hereto to the other shall be in writing and shall be deemed to have been duly given if signed by or on behalf of a duly authorised officer of the Party giving the notice and:if personally delivered, at the time of delivery to the addressee or its duly authorised agent; if posted by registered post, at the expiration of 48 hours after the envelope containing the same was delivered into the custody of the postal authorities (and not returned undelivered); and if communicated by email, on the next calendar day following transmission.

All notices to the Client or the Contractor from the other Party under this Agreement or the relevant Contract shall be in writing and sent to the appropriate address set out above.

All notices, documents and communications provided under this Agreement or the relevant Contract shall be in the English language.

18.6 Electronic Execution

i. Each Party may sign and witness this Agreement by any form of electronic signature.

ii. Each Party agrees that an electronic signature is conclusive evidence of a party's intention to be bound by this Agreement as if signed by a wet ink signature.

iii. While a witness is not required for the validity of this Agreement, the parties accept that it is best practice to have the signatures witnessed from an evidentiary perspective.

iv. If a Party stores a duly signed copy of the Agreement in an electronic format that maintains its integrity and allows unchanged reproduction of the stored information, this constitutes an original of this Agreement and may be relied on as evidence of this Agreement.

19) Governing Law

This Agreement shall in all aspects be governed by and construed in accordance with the laws of Ireland and the Parties hereby agree that the courts of Ireland have exclusive jurisdiction to hear and determine any disputes arising out of or in connection with this Agreement.

Please sign one copy of this Contract for Services and return to DemoCo:

Signature:

Name: Date:

Position: Director, DemoCo

Acceptance

I hereby accept the terms and conditions of this contract as set out above

Signature:

Name: Date:

Position:

Schedules

Schedule 1 – Service Deliverables

Schedule 2 – Fees and invoicing

Schedule 3 – Data Protection Agreement

Schedule 4 – Terms and Conditions

Schedule 1:

The Contractor agrees to provide support to users of DemoCo for business (1st level support), for the duration of this contract which will run from 13th April 2026 to 31st December 2027.

These services include:

1. Building a helpdesk knowledge base, as a centralised source of information to provide guidance on using the platform effectively as well as solutions to common issues and questions for learners and managers.

2. Providing helpdesk support directly to users, including

2.1 User support and issue resolution

i. Responding to user queries (within office hours), including addressing login issues, password resets, and general navigation questions
ii. Troubleshooting technical problems, including identifying and resolving basic issues (e.g., browser compatibility)
iii. Guiding users through course access**,** including assisting with enrolling in courses, accessing materials and tracking progress
iv. Frequently asked questions: answering common questions about course content, certificate downloading.

2.2 Documentation and reporting

i. Maintaining support logs: recording issues, resolutions, and user feedback

ii. Troubleshooting technical problems: identifying and resolving basic issues

iii. Creating/updating help resources: working with DemoCo to develop easy-to-follow guides based on common user problems

iv. Reporting on trends: providing insights to DemoCo on user difficulties to improve the eLearning experience

2.3 Working with the in-house team to ensure that user queries are resolved quickly and escalated where necessary

i. Monitoring support emails: tracking incoming requests and ensuring timely responses

ii. Escalating complex issues: referring second-level technical issues to the platform hosts

iii. Tracking recurring problems: identifying and reporting common issues

The services will be provided for up to 6 days per month. The contractor will provide DemoCo with a monthly update on their activities.

Schedule 2: Maximum fees payable by DemoCo

Daily rate	Up to 6 days per month
€	Exclusive of VAT

Fees will be paid monthly on receipt of an invoice from the Contractor.

Schedule 3: Data Processing Agreement

DemoCo utilises the services of who is Data Processor under this Data Processing Agreement.

THIS AGREEMENT (herein defined as the “Agreement”) is dated Friday, 4th of July 2025 and entered into between:

DemoCo having its registered office at , (hereinafter “**Data Controller**”)
-and- Service Consulting Solutions (Cork) Limited, having it’s registered office at Building 6500E, Cork Airport Business Park, Kinsale Road, Cork, (hereinafter “**Data Processor**”)

BACKGROUND

The Data Controller and the Data Processor are parties to an ongoing agreement, namely the Data Processing Agreement and any others named therein, collectively known herein as the “Service Agreement” for the provision of service from the Data Processor to the Data Controller. In connection with the Service Agreement, certain Personal Data concerning Data Subjects may be transferred from the Data Controller to the Data Processor. This Agreement is intended to govern such transfers and subsequent processing. Where such data processing may produce records that are recognised to be medical records, the Data Processor shall be designated as the Independent Controller of such records. The details of the data processing, with details of medical records, including a sub-processor (recipient) declaration are specified in Schedule 1 hereto and technical and organisation measures are specified in Schedule 2 hereto. This Agreement is subject to the terms of the Services Agreement and is incorporated into the Services Agreement.

WHEREAS

Under the GDPR, a written Data Processor Agreement must be in place between the Data Controller and any organisation which processes personal data on its behalf, governing the processing of the data. This Agreement is intended to satisfy that obligation.

DEFINITIONS

For the purposes of this Agreement:

“Applicable Data Protection Law” means any EU and nationally implemented law which may apply to the terms of this Agreement and which may vary from time to time, including but not limited to the Data Protection Act 2018, regulations and secondary legislation in Ireland relating to the processing of Personal Data and the privacy of electronic communications, as amended, replaced or updated from time to time, including the Privacy and Electronic Communications Directive 2002/58/EC and the European Communities (Electronic Communications Networks and Services) (Privacy and Electronic Communications) Regulations 2011 (SI 366/2011);

“Data Controller” and “Data Processor” shall have the meanings as set out in Article 4(7) and (8) respectively of EU General Data Protection Regulation 2016/679 (the “GDPR”);

“Data Protection Commission” is the supervisory authority for the purposes of Article 51 of the GDPR – generally referred to as the Supervisory Authority herein;

“Data Subject” means an individual who is the subject of Personal Data;

“Personal Data” shall have the meaning set out in Article 4(1) of the GDPR, namely, any information relating to an identified or identifiable natural person that is processed by the Processor as a result of, or in connection with, the provision of the services under the Services Agreement; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identify of that natural person;

“Personal Data Breach” means unauthorised or unlawful Processing of Personal Data or accidental loss or destruction of, or damage to, Personal Data;

“Processing”, “Processes” and “Process” mean any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction and includes transferring of Personal Data to Third parties and includes any activity that involves the use of Personal data or as defined under the Data Protection legislation/Regulations;

“Prompt Notice” shall mean 24 hours from awareness of event unless otherwise expressly stated in this agreement;

“Special Category Data” shall have the meaning set out in Article 9(1) of the GDPR;

“Supervisory Authority” means an independent public authority which is established by a Member State pursuant to Article 51 of the GDPR;

“Third Country” shall mean a location outside of the European Economic Area (EEA).

Terms not specifically defined herein will primarily take their meaning from those defined in the GDPR.

1. TERMS

The parties agree that:

1.1 The Data Controller and the Data Processor acknowledge that for the purposes of the Applicable Data Protection Law, *DemoCo* is the Data Controller and Service Consulting Solutions (Cork) Limited is the Data Processor in respect of any Personal Data.

1.2 The Data Processor shall process Personal Data only for the purposes of carrying out their obligations arising under the Service Agreement or subsequently lodged service requests as allowed within the Service Agreement.

1.3 Services are those defined under the Service Agreement.

1.4 The Data Controller shall instruct the Data Processor to process the Personal Data in any manner that may reasonably be required in order for the Data Processor to carry out the processing in compliance with this Agreement and in compliance with Applicable Data Protection Law.

1.5 The Data Controller shall refrain from providing instructions which are not in accordance with applicable laws including Applicable Data Protection Law, and, in the event that such instructions are given, the Data Processor is entitled to resist carrying out such instructions.

1.6 The details of the transfer and subsequent processing of the Personal Data are specified in Schedule 1. The parties agree that Schedule 1 may contain confidential business information which they will not disclose to third parties, except as required by law or in response to a competent regulatory or government agency, or as required by law. The parties may execute additional annexes/schedules to cover additional transfers which would include service requests, or may include multiple transfers in Schedule 1, which will be submitted to the relevant Supervisory Authority where required.

1.7 This Agreement shall continue for no less a term than the term of the Service Agreement.

1.8 The rights and obligations of the parties with respect to each other under this Clause shall survive any termination of the Agreement.

2. REGULATORY COMPLIANCE

To the extent required by law or regulation:

2.1 The Data Controller has identified their Competent or Lead Supervisory Authority in Schedule 1.

2.2 The Data Controller shall identify the Competent/Lead Supervisory Authority and inform the Data Processor.

2.3 The Data Processor shall co-operate with the Supervisory Authority in connection with any activities performed by the Data Processor on behalf of the Data Controller.

2.4 The Data Controller, its auditors and the Supervisory Authority shall have reasonable and effective access, with cause, to data related to such activities, as well as effective access to the Data Processor’s business premises in accordance with provisions herein.

2.5 The Supervisory Authority shall have without notice the right of access to the Data Processor’s business premises for purposes for this Clause.

2.6 The Data Processor shall give Prompt Notice to the Data Controller of any development that may have a material impact on the Data Processor's ability to perform services effectively under this Agreement and in compliance with applicable laws and regulatory requirements.

3. OBLIGATIONS OF THE DATA CONTROLLER

The Data Controller warrants and undertakes that:

3.1 It has the legal authority to give the warranties and fulfil the undertakings set out in this Agreement.

3.2 The Personal Data has been collected, processed, and transferred in accordance with the GDPR and all Applicable Data Protection Law.

3.3 It has used reasonable efforts to determine that the Data Processor is able to satisfy its legal obligations under this Agreement.

3.4 It will liaise with the Data Processor where a requirement arises to hold Article 30 Records of Processing Activity in order to determine whether or not the Data Processor has such records in hand, or if parties should be jointly developing such records. Where parties are required to jointly develop such records, the Data Controller shall be the primary decision-maker as to what is captured in alignment with the requirements contained in Article 30(2) of the GDPR particularly.

3.5 It will respond to enquiries from Data Subjects and the Supervisory Authority concerning processing of the Personal Data by the Data Controller. Responses will be made within a reasonable time and in accordance with the Applicable Data Protection Law.

3.6 It will make available, upon request, a copy of this Agreement to Data Subjects who are relevant to the processing, the subject matter of this Agreement, unless this Agreement contains confidential information, in which case it may redact such information. The Data Controller shall abide by a decision of the Supervisory Authority regarding access to the full text of this Agreement by Data Subjects, as long as Data Subjects have agreed to respect the confidentiality of the confidential information removed. The Data

Controller shall also provide a copy of this Agreement to the Supervisory Authority where required.

3.7 It gives the Data Processor a general authorisation to manage sub-processors as declared in Schedule 1 hereto, subject to sub-processors meeting the conditions set out in Article 28 (2) and (4) of the GDPR.

3.8 Where the Data Processor has appointed a sub-processor and a data transfer to a Third Country arises, the Data Controller will liaise with the Data Processor where a requirement arises to perform a Transfer Impact Assessment with the aim of legitimising said data transfer. Whilst the Data Processor will primarily be responsible for the execution of the Transfer Impact Assessment, both parties should agree on a reasonable format, and the Data Controller should be satisfied with the result of the assessment.

3.9 Where it objects to the appointment of a sub-processor in accordance with arrangements herein, it understands that the Data Processor might not be able to meet its service obligations and as such understands that it will be solely responsible for any damage or liability resulting from failure to deal with any platform related issues where authorisation has been requested by the Data Processor and same has not been forthcoming.

3.10 Whilst using the service, it will have in place appropriate technical and organisational measures, and all measures pursuant to Article 32 of the GDPR, to protect the confidentiality of the Personal Data and to protect the Personal Data against accidental or unlawful destruction or accidental loss, alteration, unauthorised disclosure or access, and which provide a level of security appropriate to the risk represented by the processing and the nature of the data to be protected.

3.11 Without prejudice to other legal provisions concerning the Data Subject's right to compensation and the liability of the parties generally, as well as legal provisions concerning fines and penalties, the Data Controller will carry full liability in the instance where it is found to have infringed applicable law including Applicable Data Protection Law through the instruction or otherwise to process the Personal Data under this Agreement.

3.12 It will register a DPO if and when required to do so with the Supervisory Authority in accordance with the Applicable Data Protection Law and do all

things necessary to comply with the Applicable Data Protection Law and be responsible in accordance with law, both statutory and common law to Data Subjects for any infringement of privacy or disclosure arising from its negligence, howsoever caused.

3.13 It will notify the Data Processor of any complaint, notice or communication received which relates directly or indirectly to the processing of the Personal Data, or other connected activities, or which relates directly or indirectly to the compliance of the Data Processor and/or the Data Controller with relevant applicable law including Applicable Data Protection Law.

3.14 It will give the Data Processor Prompt Notice of a Personal Data breach or a potential data breach, once becoming aware of same, and the Data Controller will cooperate with the Data Processor in implementing any appropriate action concerning the breach or the potential breach as the case may be, including corrective actions.

3.15 Where it is obligated under Applicable Data Protection Law to perform data protection impact assessments, and where the cooperation of the Data Processor is required, it will go about acquiring such cooperation under the same arrangements for Audits herein.

3.16 It will be capable of demonstrating its compliance with the obligations of Applicable Data Protection Law.

4. OBLIGATIONS OF THE DATA PROCESSOR

The Data Processor warrants and undertakes that:

4.1 It has the legal authority to give the warranties and fulfil the undertakings set out in this Agreement.

4.2 It will comply with all applicable law including Applicable Data Protection Law in its performance of this Agreement.

4.3 It will only process the Personal Data on the instructions of the Data Controller.

4.4 Where a requirement arises to hold Article 30 Records of Processing Activity on behalf of the Data Controller, it will inform the Data Controller as to the existence of such records held in its capacity as Data Processor. Where such

records do not exist, parties agree to jointly develop such records. Where parties jointly develop the records, the Data Controller shall be the primary decision-maker as to what is captured in alignment with the requirements contained in Article 30(2) of the GDPR particularly.

4.5 It will not transfer Personal Data to a Third Country, besides as indicated in Schedule 1, without the prior written approval of the Data Controller, which may be in the form of contracts such as the Service Agreement, and only then once the transfer to the Third Country has been legitimised and the Data Controller and the Data Processor are satisfied that an adequate Data Protection regime exists in the Third Country.

4.6 Where the Data Processor has appointed a sub-processor and a data transfer to a Third Country arises, it will primarily be responsible for the execution of the Transfer Impact Assessment. It accepts that both parties should agree on a reasonable format, and the Data Controller should be satisfied with the result of the assessment.

4.7 It will notify the Data Controller of the appointment of sub-processors to process the Personal Data on its behalf and allow the Data Controller to object.

4.8 Sub-processors will only process the Personal Data on the instructions of the Data Processor and the Data Processor will put in place a legal agreement in writing to govern the sub-processing.

4.9 It will have in place appropriate technical and organisational measures, and all measures pursuant to Article 32 of the GDPR, to protect the confidentiality of the Personal Data and to protect the Personal Data against accidental or unlawful destruction or accidental loss, alteration, unauthorised disclosure or access, and which provide a level of security appropriate to the risk represented by the processing and the nature of the data to be protected.

4.10 It will obtain contractual commitments from any sub-processors processing the Personal Data, that they will have in place appropriate technical and organisational measures, and all measures pursuant to Article 32 of the GDPR, to protect the confidentiality of the Personal Data and to protect the Personal Data against accidental or unlawful destruction or accidental loss, alteration, unauthorised disclosure or access, and which provide a level of

security appropriate to the risk represented by the processing and the nature of the data to be protected.

4.11 It will have in place procedures so that any individual party it authorises to have access to the Personal Data, including employees of the Data Processor, will respect and maintain the confidentiality and security of the Personal Data. Any person acting under the authority of the Data Processor shall be obligated to process the Personal Data only on instructions from the Data Processor. This provision does not apply to persons authorised or required by law or regulation to have access to the Personal Data.

4.12 It will not disclose any Personal Data to a third party in any circumstances other than at the specific written request of the Data Controller, unless such disclosure is necessary in order to fulfil the obligations of the Services Agreement or is required by applicable law.

4.13 It will notify the Data Controller of any request for information by the Supervisory Authority and will not disclose any Personal Data without the prior consent of the Data Controller.

4.14 It will notify the Data Controller of any complaint, notice or communication received which relates directly or indirectly to the processing of the Personal Data, or other connected activities, or which relates directly or indirectly to the compliance of the Data Processor and/or the Data Controller with relevant applicable law including Applicable Data Protection Law.

4.15 It will give the Data Controller Prompt Notice of a Personal Data breach or a potential data breach, once becoming aware of same, and the Data Processor will cooperate with the Data Controller in implementing any appropriate action concerning the breach, or the potential breach as the case may be, including corrective actions. Such a notice shall include as a minimum:

4.15.1 description of the nature of the Personal Data Breach, the categories and numbers of Data Subjects concerned, and the categories and numbers of Personal Data records concerned,

4.15.2 the name and contact details of the Data Processor's Data Protection Officer, Privacy Officer, or other relevant contact from whom more information may be obtained

4.15.3 describe the estimated risk and the likely consequences of the Personal Data Breach, and

4.15.4 describe the measures taken or proposed to be taken to address the Personal Data Breach.

4.16 It will delete from its systems all soft copies of any Personal Data and return all soft and hard copy documentation on the completion of the Service Agreement or on request from the Data Controller and will do so in a timely manner, giving a written confirmation of same having been done. The only exception to this shall be where the Data Processor shall have a legitimate reason, which is confirmed by the Data Controller, where such confirmation is not unreasonably withheld, to continue to process particular data or where it is legally required to maintain data records.

4.17 Without prejudice to other legal provisions concerning the Data Subject's right to compensation and the liability of the parties generally, as well as legal provisions concerning fines and penalties, the Data Processor will carry full liability in the instance where it or its sub-processor is found to have infringed applicable law including Applicable Data Protection Law through his processing of the Personal Data.

4.18 It has no reason to believe, at the time of entering into this Agreement, of the existence of any reason that would have a substantial adverse effect on the guarantees provided for under this Agreement, and it will inform the Data Controller (which will pass such notification on to the Supervisory Authority where required) if it becomes aware of any such reason.

4.19 It will process the Personal Data for purposes described in Schedule 1.

4.20 It will identify to the Data Controller a contact person within its organisation authorised to respond to enquiries concerning processing of the Personal Data and will cooperate in good faith with the Data Controller, the Data Subject and the Supervisory Authority concerning all such enquiries within a reasonable time.

4.21 It will register a DPO when required with the Supervisory Authority in accordance with the Applicable Data Protection Law and do all things necessary to comply with the Applicable Data Protection Law and be responsible in accordance with law, both statutory and common law to Data

Subjects for any infringement of privacy or disclosure arising from its negligence, howsoever caused.

4.22 As required or found necessary, applicable in substance, and agreed upon by both parties, it will adhere to an approved Code of Conduct or an approved Certification Mechanism.

4.23 Where the Data Controller is obligated under Applicable Data Protection Law to perform data protection impact assessments, and where the cooperation of the Data Processor is required, the Data Processor will cooperate under the same arrangements for Audits herein.

4.24 It will be capable of demonstrating its compliance with the obligations of Applicable Data Protection Law.

5. RIGHT OF AUDIT

5.1 Upon reasonable request of the Data Controller, the Data Processor will allow, for the purposes of audit and, where confidentiality and contracts permits, access to data processing facilities, data files and documentation used for processing, reviewing, auditing and/or certifying (or any independent or impartial inspection agents or auditors, selected by the Data Controller and not reasonably objected to by the Data Processor) to ascertain compliance with the warranties and undertakings in this Agreement, with reasonable notice and during regular business hours. The request will be subject to any necessary consent or approval from a regulatory or supervisory authority within the country of the Data Controller.

5.2 The Data Controller shall give at least 30 days' written notice of its intention to audit, including specific details on the scope of the audit and any required evidence.

5.3 The Data Controller shall conduct audit during normal business hours.

5.4 Parties will agree on dates and times for audit before audit commences.

5.5 Where audit extends beyond agreed upon periods, within reason, extra costs may be incurred, where costs should be negotiated between parties and included as a Schedule hereto as required.

5.6 The Data Controller shall take all reasonable measures to prevent material business interruption to the Data Processor.

5.7 Such audit is subject to the confidentiality provisions of the Service Agreement.

6. DATA SUBJECTS' RIGHTS

The Data Processor will assist the Data Controller, whenever reasonably required, in so far as possible, to fulfil the Data Controller's obligation to respond to requests for exercising the Data Subject's rights as provided under Applicable Data Protection Law and the Data Controller will have the appropriate organisational and technical measures in place to deal with Data Subject requests as will the Data Processor to the extent of co-operation required.

7. LIABILITY AND INDEMNITY

7.1 The Data Processor will not be liable for any claim brought by a Data Subject arising from any action by the Data Processor to the extent that such action resulted directly from the Data Controller's written instructions.

7.2 Except as provided for above, both parties shall indemnify each other for any monetary fine or penalty imposed on one by the Supervisory Authority that results from the other's breach of its obligations under this Agreement.

7.3 In the event that any claim is brought against the Data Controller by a Data Subject arising from any action by the Data Processor, to the extent that such action did not result directly from the Data Controller's written instructions, the Data Processor shall indemnify and keep indemnified and defend at its own expense the Data Controller against all costs, claims, damages or expenses incurred by the Data Controller or for which the Data Controller may become liable due to any failure by the Data Processor or its directors, officers, employees, agents or contractors to comply with any of its obligations under this Agreement.

7.4 In the event that any claim is brought against the Data Processor by a Data Subject arising from any action or omission by the Data Processor to the

extent that such action or omission resulted directly from the Data Controller's written instructions, the Data Controller shall indemnify and keep indemnified and defend at its own expense the Data Processor against all costs, claims, damages or expenses incurred by the Data Processor for which the Data Processor may become liable due to any failure by the Data Controller or its directors, officers, employees, agents or contractors to comply with any of its obligations under this Agreement.

8. LAW APPLICABLE TO THIS AGREEMENT

This Agreement shall in all respects be governed by and interpreted in accordance with the laws of the Republic of Ireland. The parties hereto hereby submit to the exclusive jurisdiction of the Irish Courts for all the purposes of this Agreement.

9. RESOLUTION OF DISPUTES WITH DATA SUBJECTS OR THE SUPERVISORY AUTHORITY

9.1 In the event of a dispute or claim brought by a Data Subject or the Supervisory Authority concerning the processing of the Personal Data against either or both of the parties, the parties will inform each other about any such disputes or claims and will cooperate with a view to settling them amicably in a timely fashion.

9.2 The parties agree to respond to any generally available non-binding mediation procedure initiated by a Data Subject or by the Supervisory Authority. If they do participate in the proceedings, the parties may elect to do so remotely (such as by telephone or other electronic means). The parties also agree to consider participating in any other arbitration, mediation or other dispute resolution proceedings developed for data protection disputes.

9.3 Each party shall abide by a decision of the Supervisory Authority which is final and against which no further appeal is possible.

10. TERMINATION

10.1 In the event that either the Data Processor or the Data Controller is in breach of its obligations under this Agreement, then either the Data Processor or the Data Controller may temporarily suspend the transfer of Personal Data to the Data Processor until the breach is repaired or the Agreement is terminated.

10.2 In the event that:

10.2.1 the transfer of Personal Data to the Data Processor has been temporarily suspended by the Data Controller for longer than one month pursuant to the above;

10.2.2 compliance by the Data Controller with this Agreement would put it in breach of its legal or regulatory obligations in the country of import;

10.2.3 the Data Processor or Data Controller are in substantial or persistent breach of any warranties or undertakings given by it under this Agreement;

10.2.4 a final decision against which no further appeal is possible of a competent court or of the Supervisory Authority rules that there has been a breach of this Agreement by the Data Controller or the Data Processor; or

10.2.5 a petition is presented for the administration or winding up of the Data Controller, whether in its personal or business capacity, which petition is not dismissed within the applicable period for such dismissal under applicable law; a winding up order is made; a receiver is appointed over any of its assets; a trustee in bankruptcy is appointed, if the Data Processor is an individual; a company voluntary arrangement is commenced by it; or any equivalent event in any jurisdiction occurs, then the Data Controller, without prejudice to any other rights which it may have against the Data Processor, shall be entitled to terminate this Agreement, in which case the Supervisory Authority shall be informed where required.

10.3 The parties agree that the termination of this Agreement at any time, in any circumstances and for whatever reason (except for termination under the clause above) does not exempt them from the obligations and/or conditions under this Agreement as regards the processing of the Personal Data transferred.

11. VARIATION OF THIS AGREEMENT

11.1 The parties may not modify this Agreement except to update any information in Schedule 1, in which case they will inform the Supervisory Authority where required. This does not preclude the parties from adding additional commercial clauses where required and does not affect the Services Agreement between the Data Controller and the Data Processor. In cases where any conflict arises in the interpretation of these agreements regarding data related matters, this Agreement shall take precedence.

DESCRIPTION OF THE PROCESSING

Competent or Lead Supervisory Authority of the Data Controller

Data Protection Commission Ireland

Data Protection Officer registration information of Parties (where applicable)

Data Controller: DC Experts

Data Processor: Service Consulting Solutions (Cork) Limited of Building 6500E, Cork Airport Business Park, Kinsale Road, Cork

Location of Data Processing

Data Controller: DemoCo,

Data Processor: Service Consulting Solutions (Cork) Limited of Building 6500E, Cork Airport Business Park, Kinsale Road, Cork,

Service Consulting Solutions (Cork) Limited do not use sub processors for the services provided to DemoCo.

Data Subjects

The Personal Data transferred concern the following categories of Data Subjects:

- Names
- Email addresses
- Phone numbers
- Names of their place of work

Data Subjects involved in future transfers may be identified in writing through the service request system of the Data Processor.

Nature and Purposes of the Processing

The Data Processor will process Personal Data as necessary to perform under the Service Agreement and as further instructed by the Data Controller.

Further purpose might relate:

The Purposes of future transfers may be expressed in writing through the service request system of the Data Processor.

Categories of Personal Data

This schedule outlines the Categories of Personal Data:

The categories of data involved in future transfers may be expressed in writing through the service request system of the Data Processor.

Sub-processors/ Recipients:

The Personal Data transferred will be disclosed, in part and not in whole and as necessary, to the following recipients or categories of recipients or as defined in the Data Protection and Privacy Notice and Service Agreement of the Data Processor.

Full Legal Name	**Processing Activity**	**Category Processed**	**Location of Processing**	**Location of Headquarters**
Not applicable	Not applicable	Not applicable	Not applicable	Not applicable

Third Country Transfers

Full Legal Name	**Processing Activity**	**Transfer To**	**Basis for Transfer out of EEA**	**Certification if applicable**	**Additional Note**
Not applicable	Not applicable	Not applicable	Not applicable	Not applicable	Not applicable

Contact points for data protection enquiries:

Data Controller

Telephone:

Email:

Data Processor

Telephone:

Email:

CATEGORIES OF PERSONAL DATA

Categories of Data	**Purpose/Activity**	**Possible Lawful Basis for Processing**
E.g., Name and contact details	*e.g., to manage our relationship with customers, suppliers, contractors and shareholders*	*e.g., Necessary for our legitimate interests (create a customer base)* *e.g., Performance of a contract*
Name and contact details	User support	Legitimate interest and performance of contract
Name and contact details	Networking for customer support	Legitimate interest and performance of contract

TECHNICAL AND ORGANISATIONAL MEASURES

The minimum technical and organisational measures that must be implemented by the Data Processor when using their own IT resources to process Personal Data:

1. All IT Networks (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process any Personal Data have properly managed, configured and up to date firewalls in place.

2. All IT Networks (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data have properly managed and configured network monitoring and logging in place.

3. All IT Networks (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data have properly managed, configured and up to date intrusion detection and/or intrusion prevention systems in place.

4. All IT Networks (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data have strong access controls in place.

5. Appropriate levels of network, system, and physical redundancy are in place.

6. All the buildings or facilities (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to host IT systems, IT devices, servers and other critical IT equipment which are used to process Personal Data are protected by appropriate physical and environmental controls.

7. All IT devices, mobile computer devices and servers (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data have real-time protection anti-virus, anti-malware and anti-spyware software installed and updated daily.

8. All IT systems, IT devices, mobile computer devices, servers and other critical IT equipment (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data are protected by strong unique passwords which satisfy or better the requirements of the Data Controller's Password Policy.

9. All the mobile computer devices and removable storage devices (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data have encryption enabled which encrypts any Personal Data stored at rest on the device. The encryption of the Personal Data on the device may be achieved by either full- disk encryption, file system encryption or (as applicable) database encryption. All encryption used by the Data Processor must satisfy or better the requirements of the Data Controller's Encryption Policy.

10. All servers (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data have encryption enabled which encrypts any Personal Data stored at rest on the server. The encryption of the Personal Data on the server may be achieved by either full-disk encryption, file system encryption or (as applicable) database encryption. All encryption used by the Data Processor must satisfy or better the requirements of the Data Controller's Encryption Policy.

11. All servers (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data are backed up on a daily basis. Where the Data Processor backs up the Servers onto backup media, the Data Processor must ensure the following:

    11.1 The backup media is stored a sufficient distance away from the server, for example, in another building on-site under the control of the Data Processor or off-site in a building or facility controlled by the Data Processor or a contracted third party;

11.2 When not in use, the backup media is protected from damage caused by fire, heat, humidity, water, and exposure to strong magnetic fields;

11.3 The backup media is password protected by strong unique passwords which satisfy or better the requirements of the Data Controller's Password Policy;

11.4 The backup media is encrypted using strong encryption which satisfies or betters the requirements of the Data Controller's Encryption Policy;

11.5 Access to the backup media is limited to the Data Processors employees, contractors and/or (as applicable) Sub-Processors who are involved in the backup process;

11.6 When in transit, the backup media is protected at all times from damage, theft, interference and loss;

11.7 The backup media is tested by the Data Processor on a regular basis;

11.8 All old, obsolete, and damaged backup media which was used to backup Personal Data is physically destroyed.

12. All servers (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data have logging enabled, and the server logs are monitored by the Data Processor on a regular basis.

13. All Personal Data which is sent in transit by the Data Processor is sent via secure channels (for example, VPN, Secure FTP or TLS) or encrypted email. All encryption used by the Data Processor must satisfy or better the requirements of the Data Controller's Encryption Policy.

14. Appropriate patch management procedures are in place for managing the timely application of relevant security software updates and patches to all IT devices, mobile computer devices, servers and other critical IT equipment (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data.

15. Documented disaster recovery plans are in place which detail how the Data Processor will restore the availability of, and access to any servers (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data in the event of a physical or technical security breach.

16. Appropriate asset management procedures are in place which allow for the management and recording of all the Data Processors IT hardware and software assets used to process Personal Data.

17. Appropriate procedures are in place for the timely decommissioning and secure wiping or destruction (i.e. process that renders data unrecoverable) of all old, obsolete and damaged IT devices, mobile computer devices, servers, software and other critical IT equipment (with the exception of those which are owned or controlled by the Data Controller) used by the Data Processor to process Personal Data.

18. Appropriate procedures are in place which allow the Data Processor to regularly, test, assess and evaluate the effectiveness of the technical and organisational measures they have implemented to ensure the security of Personal Data which they process on behalf of the Data Controller.

19. Appropriate separation controls are in place which provide for the separation of different customers data on the Data Processors IT hardware and software and ensure Personal Data is Processed by the Data Processor as separately as possible from the Data Processors other customer’s data.

20. Full separation (where applicable) of the Data Processors production and development / test / training environments is in place.

21. Documented IT and information security policies are in place which all the Data Processor's employees and contractors sign up to and are expected to comply with.

22. Appropriate procedures are in place for the vetting of all new Data Processor employees and contractors who will have access to Personal Data.

23. Non-disclosure and confidentiality clauses are included in the Data Processors contracts of employment for all their employees and contractors who have access to Personal Data.

24. Where legally required to do so, the Data Processor has appointed a Data Protection Officer (DPO) in accordance with Article 37 of the GDPR.

EXECUTED by the parties on the date appearing at the top of page 1.

SIGNED

By:

Duly authorised for and on behalf of The Data Controller

SIGNED

By:

Duly authorised for and on behalf of The Data Processor

Schedule 4: DemoCo,

Terms and Conditions ("Terms") contained here form part of the Contract and shall have as full effect as if they were incorporated in the body of the Contract

1 Contractors Responsibilities

1.1 In consideration of the payment of the Charges and subject to clause 2 the Contractor shall:

a) Provide the Service in accordance with the Specification, the Invitation to Tender, the Client's directions and these Terms;

b) Comply with and implement any policies, guidelines and/or any project governance protocols issued by the Client from time to time and notified to the Contractor in writing;

c) Comply with all local security and health and safety arrangements as notified to it by the Client and;

d) Provide the Services in accordance with good industry practice and comply with all applicable laws including but not limited to all obligations in the field of environmental. Social and labour law that apply at the place where the Services are provided, that have been established by EU law, national law, collective agreements and/or by international, environmental, social and labour law listed in Schedule 7 of the European Union (Award of Public Authority Contracts) Regulations 2015 (Statutory Instrument 284 of 2016) (the "Regulations"). The Contractor shall be responsible for compliance with all statutory requirements of an employer and without prejudice to the generality of the foregoing shall be solely responsible in law for the employment, remuneration, taxes, immigration and work permits of all personnel retained for the purposes of complying with this Agreement.

1.2 During the Contract Period the Contractor shall be an independent entity and not the employee of the Client. Neither Party shall have any authority to bind or commit the other. Nothing herein shall be deemed or construed to create a joint venture, partnership and/or fiduciary or other relationship between the parties for any purpose. The officers, employees or agents of the Contractor are not and shall not hold themselves out to be (and shall not be held out by the Contractor as being) servants or agents of the Client for any purposes

whatsoever.

1.3 The Client acknowledges that the Contractor may from time to time be dependent on the Client to facilitate the Contractor in the carrying out of its duties under the Contract. The Client agrees to use its reasonable endeavours to so facilitate the Contractor within the timescales and in the manner agreed by it in writing in accordance with clause 9.

a) The Contractor shall comply with all applicable obligations arising pursuant to the European Communities (Protection of Employees' Rights on Transfer of Undertakings) Regulations 2003 (S.I, No. 131 of 2003) and Council Directive 2001/23/EC (together the "TUPE Regulations") and failure to so comply shall constitute a serious breach of this Agreement. The Contractor shall indemnify, save harmless and keep the Client indemnified from and against any claim arising or loss or costs incurred as a result of its failure or incapacity to fulfil its obligations under the said TUPE Regulations.

2 Payment

2.1 Subject to the provisions of this clause 2 the Client shall pay and discharge the Charges (plus any applicable VAT required from time to time), in the manner set out or referred to in Schedule 2. Invoicing arrangements shall be on such terms as may be agreed between the parties.

2.2 Discharge of the Charges is subject to:

a) Compliance by the Contractor with the provisions of this Agreement including but not limited to any milestones, compliance schedules and/or operational protocols in place pursuant to clause 9 from time to time;

b) The furnishing by the Contractor of a valid invoice and such supporting documentation as may be required by the Client from time to time. Any Contractor pre-printed terms and conditions are hereby disallowed;

c) Invoices being submitted to the Client's contact (as set out in this Agreement or such other alternative contact as may be agreed between the Parties). All and any queries relating to the invoice and/or the Services for any billing period (including whether or not Services have been accepted, rejected, satisfactorily re-performed or as the case may be),must by raised by the Client's contact within 14 calendar days of receipt of

invoice and the Client need not pay the queried amount until the query is resolved. In circumstances where no queries are raised within the said 14 day [period] the invoices shall be deemed accepted. Upon resolution of any queries on the invoice to the satisfaction of the Client or upon such acceptance the invoice shall be payable by the Client. Payment is subject to any rights reserved by the Client under any other provision of this Agreement; and

d) The Client being in possession of the Contractor's current Tax Clearance Certificate. The Contractor shall comply with all applicable EU and domestic taxation law and requirements.

2.3 European Communities (Late Payments in Commercial Transactions) Regulations, 2012 shall apply to all payments. Incorrect invoices will be returned for correction with consequential effects on the due date of payment.

2.4 Wherever under this Agreement any sum of money is recoverable or payable by the Contractor (including any sum which the Contractor is liable to pay to the Client in respect of any breach of this Agreement), the Parties may agree to deduct that sum from any sum then due, or which at any later time may become due to the Contractor under the Agreement or under any agreement or contract with the Client. Any overpayment by either Party, whether of the Charges or of VAT or otherwise, shall be a sum of money recoverable by the Party who made the overpayment from the Party in receipt of the overpayment.

2.5 The Charges set out or referred to in Schedule 2 are the maximum amount payable by the Client under the Contract for the provision of the Services. Unless the Contract expressly states otherwise, the Contractor must not claim or bill the Client for any charges, costs, royalties, taxes, expenses, or other amounts for the Services or any part of them. In no event will the Client be responsible for any payment to any third parties. The Charges shall include any and all costs or expenses incurred by the Contractor, its employees, servants and agents in the performance of its obligations under the Contract.

2.6 The Charges shall be discharged as provided for in this clause subject to the retention by the Client in accordance with section 523 of the Taxes Consolidations Ace 1997 of any Service Services Witholding Tax payable to the Contractor. Any and all taxes applicable to the provision of the Services

will be the sole responsibility of the Contractor and the Contractor so acknowledges and confirms.

2.7 Unless stated otherwise, all amounts payable by Client to the Contractor under the Agreement are payable in Euro €.

3 Warranties, Representations, Undertakings and Declarations

3.1 The Contractor acknowledges, warrants, represents and undertakes that:

a) It has the authority and right under law to enter into and to carry out its obligations and responsibilities under this Agreement and to provide the Services hereunder;

b) It is entering this Agreement with a full understanding of its material terms and risks and is capable of assuming those risks;

c) It is entering into this Agreement with a full understanding of its obligations with regard to taxation, employment, social and environmental protection and is capable of assuming and fulfilling those obligations;

d) It has acquainted itself with and shall comply with all legal requirements or such other laws, recommendations, guidance or practices as may affect the provision of the Services as they apply to the Contractor;

e) It has taken all and any action necessary to ensure it has the power to execute and enter into this Agreement;

f) The status of the Contractor, as declared in the 'Declaration as to Personal Circumstances of Tenderer' which confirm that none of the excluding circumstances listed in Regulation 57 of the Public Contracts Regulations apply to the Contractor remains unchanged;

g) It owns, has obtained or is able to obtain, valid licences for all Intellectual Property Rights (as defined in clause 5 below) that are necessary for the performance of its obligations under this Agreement and for the Client to obtain the benefit of the Services for its business purposes;

h) The Client shall be under no obligation to purchase any minimum number or value of Services; and

i) It retains and shall maintain for the Term insurances for the following nature and amount: Service Indemnity €6,500,000, Employer's liability

€13,000,000, Public liability €7,000,000, Products liability €7,000,000, Pollution €130,000 and Cyber incident response indemnity €2,000,000. The Contractor undertakes to inform the Client forthwith of any material change to its insured status, to produce proof of current premiums paid upon written request and where required produce valid certificates of insurance for inspection. The Contractor shall carry out all directions of the Client with regard to compliance with this clause.

The Contractor undertakes to notify the Client forthwith of any material changes to the status of the Contractor with regard to the warranties, acknowledgements, representations and undertakings as set out at clause 3.1 and to comply with all reasonable directions of the Client with regard thereto which may include termination of this Agreement.

3.2 Contractor's Declaration under Article 57 of Directive 2014/24/EU

3.2.1 The Contractor hereby declares that, in accordance with Article 57 of Directive 2014/24/EU, it does not fall under any of the exclusion grounds outlined in the Directive, including but not limited to:

(a) Participation in a criminal organisation, corruption, fraud, terrorist offences, money laundering, or child labour and human trafficking, as defined by EU law and the national laws of the contracting authority;

(b) Breach of obligations relating to the payment of taxes or social security contributions, as confirmed by a final and binding judicial or administrative decision;

(c) Bankruptcy, insolvency, or analogous situations;

(d) Grave Service misconduct, including collusion, conflict of interest, or distortion of competition;

(e) Serious misrepresentation or withholding of relevant information during the procurement process.

3.2.2 Notification of Changes

The Contractor agrees to promptly notify the Client in writing of any

changes that may affect the Contractor's compliance with the above criteria during the term of the contract. In the event of any such changes, the Client reserves the right to review the Contractor's eligibility and take appropriate action, including the possibility of contract termination or exclusion from future procurement procedures.

3.2.3 Compliance with Legal Requirements

The Contractor acknowledges that this declaration must be updated as necessary to reflect any changes in the status of the Contractor's eligibility to participate in procurement procedures under EU law and the applicable national law. The Contractor further agrees to provide any additional information or supporting documents requested by the Client to verify the continued compliance with the exclusion grounds set out in Directive 2014/24/EU.

4 Remedies

4.1 The Contractor shall be liable for and shall indemnify the Client for and in respect of all and any losses, claims, demands, damages or expenses which the Client may suffer due to and arising directly as a result of the negligence, act or omission, breach of contract, breach of duty, insolvency, recklessness, bad faith, wilful default or fraud of the Contractor, its employees or agents or any of them or as a result of the Contractor's failure to exercise skill, care and diligence as outlined in clause 1. The terms of this clause 4.1 shall survive termination of this Agreement for any reason.

4.2 Save in respect of fraud (including fraudulent misrepresentation), personal injury or death, any matter for which it would be unlawful for the that Party to limit or exclude its liability or in respect of the Contractor's indemnity under clause 5.7, neither Party will be liable for any indirect losses (including losses of profit, loss of revenue, loss of goodwill, indirectly arising damages, costs and expenses) of any kind whatsoever and howsoever arising even if such Party has been advised of their possibility

4.3 Should the Client find itself obliged to order elsewhere in consequence of the failure of the Contractor to deliver Services, the Client shall be entitled to

recover from the Contractor any excess prices which may be paid by the Client.

4.4 Except as otherwise expressly provided by the Terms, all remedies available to either Party for breach of this Agreement are cumulative and may be exercised concurrently or separately and the exercise of any one remedy shall not be deemed an election of such remedy to the exclusion of other remedies.

4.5 Save in respect of

- fraud by the Contractor,
- personal injury or death caused by the Contractor's acts or omissions, and
- in respect of the Contractor's indemnity under clause 5.7 (for which no limit applies), the limit of the Contractor's aggregate liability to the Client under the Contract whatsoever and howsoever arising shall not under any circumstances exceed 100% of the Charges paid or projected to be paid whichever is the higher under this Agreement regardless of the number of claims.

Save in respect of

- fraud by the Client, or
- personal injury or death caused by the Client's actions of omissions (for which no limit applies), the limit of the Client's aggregate liability to the Contractor under the Contract whatsoever and howsoever arising shall not under any circumstances exceed 100% of the Charges payable under the Contract regardless of the number of claims.

4.6 If for any reason the client is dissatisfied with the performance of the Contractor, a sum may be withheld from any payment otherwise due calculated as specified in the main body of this Agreement.

4.7 Time of delivery shall be of the essence and if the Contractor fails to deliver the Services within the time period promised or specified in the Specification the Client may be notice in writing to the Contractor's contact release itself from any obligation to accept and pay for the Services and terminate the Contract or this Agreement in either case without prejudice to any other rights and remedies of the Client.

5 Intellectual Property

5.1 Intellectual property Rights ("IPR") means all patents and patent rights, trademarks and trademark rights, trade names and trade name rights, service marks and service mark rights, service names and service name rights, brand names, copyrights and copyright rights, trade dress, business and product names, logos, slogans, trade secrets, industrial models, utility models, design models, designs, rights in confidential information, know-how, rights in the nature of unfair competition rights and rights to sue for passing off, and all pending applications for and registrations of patents, trademarks, service marks and copyrights together with all connected and similar or analogous rights in any country or jurisdiction for the full term thereof.

5.2 Pre-existing IPR means all IPR existing prior to the date of this Agreement and all IPR in any materials, acquired or developed by or for Contractor or Client independently of this Agreement, and any IPR in Contractor's standard hardware and software products or modifications or updates to such products.

5.3 All IPR title and interest in all reports, data manuals and/or other materials (other than software) (including without limitation all and any audio or audio visual recordings, transcripts, books, papers, records, notes, illustrations, photographs, diagrams) produced for the purposes of this Agreement (collectively "the Materials") (or any part or parts thereof) shall vest in the Client and the Contractor so acknowledges and confirms. For the avoidance of doubt the Contractor hereby assigns all Intellectual Property Rights, title and interest in the Materials (including by way of present assignment of future copyright) to the extent that any such Intellectual Property Rights title or interest may be deemed by law to reside in it in the Materials to the Client absolutely.

5.4 The Client grants to the Contractor a royalty-free, non-exclusive, revocable, non-transferable licence to use the Client's Pre-existing IPR for the Contract Period to the extent necessary to enable the Contractor to fulfil its obligations under this Agreement. Save as expressly set out in this clause 5 all Pre-Existing IPR shall remain the sole property of the Party who owned, acquired or developed such intellectual property.

5.5 The Contractor shall waive or procure a waiver of all moral rights subsisting

in copyright produced, assigned, or supplied under or in performance of this Agreement.

5.6 Nothing in this Agreement shall prohibit or be deemed to prohibit the Contractor from providing services similar to the Services to any party other than the Parties hereto. In no event shall the Contractor be precluded from independently developing for itself, or for others, materials which are competitive with, or similar to, the Services and to use its general knowledge, skills and experience, and any ideas, concepts, know-how, formats, templates, methodologies and techniques that are acquired or used in the course of providing the Services.

5.7 The Contractor shall ensure that all and any necessary consents and/or licences for any software, instrument, modality or methodology are obtained and in place before use for the purposes of this Agreement (to include but not be limited to ensuring that the Client shall be vested with all necessary rights so as to enable the Client to enjoy the benefit of the Services for its business purposes). The Contractor hereby indemnifies the Client and shall keep and hold the Client harmless from and in respect of all and any losses (whether direct, indirect or consequential), liability, damages, claims, costs or expenses which arise by reason of any breach of third party Intellectual Property Rights in so far as any such rights are used for the purposes of this Agreement. At the request of the Client for and in respect of any such breach, the Contractor shall at its expense and option:

i. procure the necessary rights for the Client to continue use;

ii. replace the relevant deliverable with a non-infringing equivalent;

iii. replace the relevant deliverable to make it non-infringing while giving equivalent performance; or

iv. if the Contractor cannot obtain the remedies in (i), (ii) or (iii) above, it may direct the return of the deliverable and refund to the Client Charges paid for such deliverable less a reasonable amount for the Client's use of the deliverable up to the time of return, provided such reasonable amount is due to the owner of the said deliverable, TOGETHER with all losses (whether direct, indirect of consequential) thereby accruing to the Client as a result of the

breach.

5.8 Upon termination of the Agreement for whatever reason, the Contractor shall immediately deliver up to the Client all the materials prepared up to the date of the termination. The provisions of this clause 5 will survive the termination of the Agreement for any reason.

6 Confidentiality

6.1 Each of the Parties agrees to hold confidential all information, documentation and other material received, provided or obtained arising from their participation in this Agreement ("Confidential Information") and shall not disclose same to any third party except to:-

a) Its Service advisors subject to the provisions of this clause 6; or
b) As may be required by law; or
c) As may be necessary to give effect to the terms of the Agreement subject to the provisions of this clause 6; or
d) In the case of the Client by request of any person or body or authority whose request the Client or persons associated with the Client (including but not limited to the Legislature and/or the Executive and/or the Civil Service) considers it necessary or appropriate to so comply.

6.2 The Contractor undertakes to comply with all reasonable directions of the Client with regard to the use and application of all and any of its Confidential Information. The obligations in this clause 6 will not apply to any Confidential Information:

a) In the receiving Party's possession (with full right to disclose) before receiving it from the other Party; or
b) Which is or becomes public knowledge other than by a breach of this clause; or
c) Is independently developed by the disclosing Party without access to or use of the Confidential Information; or
d) Is lawfully received by the disclosing Party from a third party (with full right to disclose).

6.3 The Contractor acknowledges that the security of the state and its information is of paramount importance to the Client. Accordingly, the Contractor confirms

that it will, if requested by the Client, from time to time, submit full personal details of all persons who are assigned to provide the Services (or any part thereof) under this Agreement. The Contractor further acknowledges that checks may be carried out in relation to all such personnel by police authorities and the Contractor shall comply with all reasonable directions of the Client arising therefrom.

6.4 In circumstances where the Client is subject to the provisions of the Freedom of Information Code of Practice for North South Bodies or the European Communities (Access to Information on the Environment) Regulations 2007 to 2014, then in the event of the Client receiving a request for information related to this Agreement, the Client shall consult with the Contractor in respect of the request. The Contractor shall specifically identify any information that is not to be disclosed on grounds of confidentiality or commercial sensitivity, and shall state the reasons for this sensitivity. The Client will consult the Contractor about this confidential or commercially sensitive information before making a decision on any request received under the above legislation. The Contracting Authority accepts no liability whatsoever in respect of any information provided which is subsequently released (irrespective of notification) or in respect of any consequential damage suffered as a result of such obligations.

6.5 Each Party acknowledges that:

a) any actual or threatened breach of this clause 6 will cause immediate and irreparable harm to the discloser or to any third party to whom the discloser owes a duty of confidence, which an award of damages or an account of profits may not adequately compensate; and

b) without in any way compromising its right to seek damages or any other form of relief, the discloser may start legal proceedings to seek the remedies of injunction, specific performance or other equitable relief (without proving any damage sustained by it or by any third party) for any threatened or actual breach of this clause 6.

6.6 The terms of this clause 6 shall survive expiry, completion or termination for whatever reason of this Agreement.

7 Contract Management

7.1 The Client's contact and the Contractor's contact shall liaise on a regular basis to address any issues arising which may impact on the performance of the Services or this Agreement and to agree milestones, compliance schedules and operational protocols as required by the Client from time to time. If requested in writing by the Client the Contractor shall meet formally with the Client to report on progress and shall comply with all written directions of the Client.

7.2 The Contractor agrees to:

a) Liaise with and keep the Clients contact fully informed of any matter which might affect the observance and performance of the Contractor's obligations under this Agreement;

b) maintain such records and comply with such reporting arrangements and protocols as required by the Client from time to time;

c) comply with all reasonable directions of the Client; and

d) comply with the service levels and performance indicators.

7.3 The Client or its authorised representative may inspect the Contractor's premises, lands and facilities (or such part or parts thereof relating solely to this Agreement) with due access to relevant personnel and records upon reasonable notice in writing to ensure compliance with the terms of this Agreement. The Contractor shall comply with all reasonable directions of the Client thereby arising. The cost of inspection shall be borne by the Client. Permission to publish will not be unreasonably withheld, but the Contractor understands that an additional stay in publication may be required to allow any relevant protection to be arranged. In any case any such process will occur in consultation with all parties.

8 Media

8.1 No media releases, public announcements or public disclosures relating to this Agreement or its subject matter, including but not limited to promotional or marketing material, shall be made by the Contractor without the prior written consent of the Client.

9 Conflicts, Registrable Interests and Corrupt Gifts

9.1 The Contractor confirms that it has carried out a conflicts of interest check and is satisfied that neither it nor any agent as the case may be has any conflicts

in relation to the Services and its obligations undertaken under this Agreement. The Contractor hereby undertakes to notify the Client immediately should any conflict or potential conflict of interest come to its attention during the currency of this Agreement and to comply with the Client's directions in respect thereof. In the event of such notification, the Client shall have the right (in addition to any other rights which it has at law) to terminate this Agreement immediately and without liability for compensation or damages.

9.2 Any registrable interest involving the Contractor (and agent as the case may be) and the Client, the Ceann Comhairle (Speaker), or any member of the Government, or any member of the Oireachtas, or their relatives must be fully disclosed to the Client immediately upon such information becoming known to the Contractor (or agent as the case may be) and the Contractor shall comply with the Client's directions in respect thereof, to the satisfaction of the Client. In the event of such disclosure, the Client shall have the right (in addition to any other rights which it has at law) to terminate this Agreement immediately and without liability for compensation or damages. The terms "registrable interest" and "relative" shall be interpreted as per section 2 of the Ethics in Public Office Act 1995 (as amended) a copy of which is available on request.

9.3 The Contractor shall not offer or agree to give any public servant or civil servant any gift or consideration or commission of any kind as an inducement or reward for doing or forbearing to do or for having done or forborne to do any action in relation to the obtaining or execution of this or any other public contract. Any breach of this clause 18.3 or the commission of any offence by the Contractor, agent or employee under the Criminal Justice (Corruption Offences) Act 2018 shall entitle the Client to terminate this Agreement immediately and without liability for compensation or damages and to recover the amount of any loss resulting from such cancellation, including but not limited to recovery from the Contractor of the amount or value of any such gift, consideration or commission. Before disclosure to a recipient, the receiving party shall ensure that a recipient is made aware of and complies with the receiving party's obligations of confidentiality under this Contract as if the recipient was a party to this Contract.

10 Access to Premises

10.1 Any of the Client's premises made available from time to time to the Contractor by the Client in connection with this Agreement, shall be made available to the Contractor on a non-exclusive licence basis and shall be used by the Contractor solely for the purpose of performing its obligations under this Agreement. The Contractor shall have use of such premises as licensee and shall vacate the same on completion, termination or abandonment of this Agreement.

10.2 The Contractor shall upon reasonable notice in writing by the Client allow the Client or its representative access to its premises (including the premises of any agent) where the Services are being performed for the Client under this Agreement.

11 Equipment

11.1 The Contractor shall provide all equipment and materials necessary for the provision of the Services ("Equipment") unless otherwise agreed to between the Parties.

11.2 All Equipment brought onto the Client's premises shall be at the Contractor's own risk and the Client shall have no liability for any loss of, caused by or damage to any Equipment. The Contractor shall provide for the haulage or carriage thereof to the Client's premises and the removal of Equipment when no longer required at its sole cost. Unless otherwise agreed, Equipment brought onto the premises will remain the property of the Contractor.

11.3 The Contractor shall maintain and store all items of Equipment within the Client's premises in a safe, serviceable and clean condition.

11.4 The Contractor shall, at the Client's written request, at its own expense and as soon as reasonably practicable:

a) Remove from the Client's premises any Equipment which in the reasonable opinion of the Client is either hazardous, noxious or not in accordance with this Agreement;

b) Replace such item with a suitable substitute item of Equipment.

11.5 On completion of the Services the Contractor shall remove the Equipment

used by the Contractor to provide the Services and shall leave the Client's premises in a clean, safe and tidy condition. The Contractor is solely responsible for making good any damage to the Client's premises or any objects contained thereon, other than fair wear and tear, which is caused by the Contractor or any of its employees or agents.

11.6 Where the Client provides any equipment or materials for the performance of the Services ("**Client Equipment**"), the following terms shall apply:

a) The Contractor shall ensure that the Client Equipment is used solely for the purpose of performing the Services and only by personnel authorised and trained to do so.
b) The Contractor shall ensure that the Client Equipment is not tampered with, misused, modified, or altered in any way without the prior written consent of the Client.
c) The Contractor shall take reasonable care of the Client Equipment, maintain it in good working condition (excluding fair wear and tear), and follow any operating instructions, maintenance protocols, or guidelines provided by the Client.
d) The Contractor shall notify the Client promptly of any damage to or malfunction of the Client Equipment.
e) The Contractor shall be liable for any loss of or damage to the Client Equipment arising out of negligence, misuse, or failure to comply with the terms of this Agreement.
f) The Contractor shall ensure that all Client Equipment is returned to the Client in good condition (subject to fair wear and tear) no later than five (5) business days prior to the completion or termination of the Contract, or as otherwise agreed in writing.
g) Title to the Client Equipment shall at all times remain with the Client, and the Contractor shall not part with possession of, lend, sell, or otherwise dispose of any such equipment.

12 Non Solicitation

12.1 For the Term and for a period of 12 months thereafter (and save in respect of publicly advertised posts) neither the Client nor the Contractor shall employ or

offer employment to any of the other Party's employees without that other Party's prior written consent.

13 Change Control Procedure

13.1 At any time during the Contract Period , either Party may propose a change or changes to any part or parts of this Agreement.

13.2 The change control procedures set out in this Clause 22 will apply to all changes irrespective of whether the Contractor or the Client proposes the change.

13.3 A change control notice ("Change Control Notice") shall be prepared for all change requests. The Change Control Notice will provide an outline description of the change requested, the rationale for the change, the effect that the change will have on the Services (where known) and an estimate of the effort and cost required to prepare an impact assessment ("Impact Assessment").

13.4 All Change Control Notices proposing changes to this Agreement must be submitted for review to the other Party's Contact.

13.5 The Parties must indicate their acceptance or rejection of the change control request and/or Impact Assessment within a reasonable timeframe of its completion and tender submission for review, subject to a maximum of twenty (20) calendar days or such other period agreed between the Parties.

13.6 On approval of an Impact Assessment, this Agreement and/or the Schedules/Appendices should be updated and revised as appropriate and in writing.

13.7 In the event that either Party rejects the Impact Assessment, the change(s) shall not take place and the Parties shall continue to perform their obligations under this Agreement.

13.8 The Contractor and the Client will agree a reasonable charge in advance for investigating each proposed variation and preparing each estimate, whether or not the variation is implemented. If the Client's request for any variation is subsequently withdrawn but results in a delay in the performance of the Services then the Contractor will not be liable for such delay and will be entitled to an extension of time equal to not less than the period of the delay.

14 Data Protection and Security

14.1 The Contractor shall comply with all applicable requirements of the Data Protection Laws.

14.2 The Parties acknowledge that for the purposes of the Data Protection Laws, the Client is the Data Controller and the Contractor is the Data Processor in respect of Data which is Personal Data and undertake to sign and comply with the terms of the Data Processing Agreement attached at Schedule 3.

14.3 The provisions of this clause shall survive termination and or expiry of this Agreement for any reason.

15 Children First Act 2015

15.1 If this DemoCo funded project involves work undertaken by the Contractor which requires them to involve and/or include children, regardless of location on the island of Ireland, the Contractor is obliged to ensure that it complies with the requirements of the Children First Act 2015 of the Republic of Ireland.

15.2 If this DemoCo funded project involves work undertaken by the Contractor which requires them to involve and/or include children, regardless of location on the island of Ireland, before work commences, it is a requirement for the Contractor to inform DemoCo of the necessity of involving or including children in the work, the rationale for same, a full account of all activities and a detailed proposal as to how the Contractor will fulfil the legislative requirements and obligations arising under the Children First Act 2015.